

the Parliament in the Act of 14 H. 8. in making of a law concerning physicians, for the more safety and health of men, therein follow the order of a good physician (*Rex enim omni' artes censetur habere in scrinio pect' sui*) for, *medicina* [117 a] *est duplex, removens, et promovens; removens morbum, et promovens ad salutem;* and, therefore, five manner of persons (who more hurt the body of man than the disease itself, one of which said of one of their patients, *fugiens morbum incidit in medicum*) are to be removed:—1. *Improbi.* 2. *Avari, qui medicinam magis avaritiæ suæ causa quam ullius bonæ conscientie fiducia profitentur.* 3. *Malitiosi.* 4. *Temerarii.* 5. *Inscii.* And of the other part five manner of persons were to be promoted, as appears by the said Act, *sc.* those who were: 1, profound; 2, sad; 3, discreet; 4, groundly learned; 5, profoundly studied. And it was well ordained, that the professors of physick should be profound, sad, discreet, &c. and not youths, who have no gravity and experience; for as one saith, *In juvene theologo conscientie detrimentum, in juvene legista bursæ detrimentum, in juvene medico cæmeterii incrementum.* And it ought to be presumed, every doctor of any of the universities to be within the statutes, *sc.* to be profound, sad, discreet, groundly learned, and profoundly studied, for none can there be master of arts (who is a doctor of philosophy) under the study of seven years, and cannot be doctor in physick under seven years more in the study of physick; and that is the reason that the plaintiff is named in the declaration doctor of philosophy, and doctor of physick; *quia oportet medicum esse philosophum, ubi enim philosophus desinit, medicus incipit.* As to the two points upon which the Chief Justice, Warburton and Daniel, gave judgment. 1. It was resolved by them, that the said censors had not power to commit the plaintiff for any of the causes mentioned in the bar; and the cause and reason thereof shortly was, that the said clause, which gives power to the said censors to fine and imprison, doth not extend to the said clause, *sc. quod nemo in dicta civitate, &c. exerceat dictam facultatem, &c.* which prohibits every one from practising physick in London, &c. without licence from the president and college: but extends only to punish those who practise physick in London, *pro delictis suis in non bene exequendo, faciendo et utendo facultate medicine,* by fine and imprisonment (B): so that the censors have not power by the letters patent, and the Act, to fine or imprison any for practising physick in London, but only *pro delictis suis in non bene exequendo, &c. sc.* for ill, and not good use and practice of physick. And that was made manifest by five reasons, which were called *viduæ rationes*, because they had their vigour and life from the letters patent and the Act itself; and the best (a) expositor of all letters patent, and Acts of Parliament, are the letters patent and the Acts of Parliament themselves, by construction, and conferring (b) all the parts of them [117 b] together, (c) *optima statuti interpretatrix est (omnibus particulis ejusdem inspectis) ipsum statutum;* and (d) *injustum est nisi tota lege inspecta una aliqua ejus particula proposita judicare vel respondere.* The first reason was, that these two were two absolute, perfect, and distinct clauses, and as parallels, and therefore the one did not extend to the other; for the second begins, *præterea voluit et concessit, &c.* and the branch concerning fine and imprisonment is parcel of the second clause. 2. The first clause prohibiting the practice of physick, &c. comprehends four certainties:—1. Certainty of the thing prohibited, *sc.* practice of physick. 2. Certainty of the time, *sc.* practice for one month. 3. Certainty of penalty, *sc.* 5l. 4. Certainty in distribution, *sc.* one moiety to the King, and the other moiety to the college; and this penalty he who practises physick in London incurs, although he practices and uses physick well, and profitable for the body of man; and on this branch the information was exhibited in the King's Bench. But the clause to punish *delicta in non bene exequendo, &c.* on which branch the

(B) *Mala praxis* in a physician surgeon, or apothecary, is a great misdemeanor and offence at common law, whether it be for curiosity or experiment, or by neglect; because it breaks the trust which the party had placed in his physician, and tends to the patient's destruction. *Dr. Groenvell's case*, Ld. Raym. 243. S. C. 12 Mod. 119.

(a) Godb. 418. 2 Roll. Rep. 356, Wing. Max. 239.

(b) 2 Co. 55 a. 3 Co. 59 b. Godb. 324. Co. Lit. 381. 5 Co. 99 a.

(c) Wing. Max. 239.

(d) Wing. Max. 239.